Pine Valley Special Service District Meeting (PVSSD)
Minutes of the Meeting held On October 3, 2012

Attending Members: Dall Winn (Meeting Chair); Jeff Gardner; Spence Beckstrom; John Nichols
Also Present: Gerald Schiefer (Fire Chief); George Cropper (Treasurer); Beverly Udell (Secretary)
Absent: Mary Esther Putnam;
Guests: Fred Pendleton; Ray Lindblom; Violet Esparza; Fermin Esparza; Frank Davie; Laurett Winterton

1. General Business:
a/b. Welcome – Meeting was opened by Dall Winn at 6:00 and the Pledge was said by all.
c. Minutes: Minutes for August and September were reviewed by the Board members. Jeff motioned to approve both sets of Minutes as written, John seconded that motion and all else approved.
d. Pine Valley Building Permits Reviewed: Spence re-visit the case of the August meeting where there was a question about the Sorenson property in which they purchased a property with an old cabin on it, tore it down and wanted to build a new home on the lot. The question was concerning whether or not they had to pay an impact fee since there had already been a structure on that lot, one which theoretically would have had annual fire fees assessed to it and paid. This was further complicated by the fact that those said annual fees had not been paid by the previous owners. The decision of the August meeting was that the Sorenson's did have to pay an impact fee. However, since that decision, Spence had spoken to the County Attorney on the subject, and was told by the County Attorney in his opinion, since the new house is going over the same spot where the old one stood, he felt legally they should not have to pay an impact fee. The fact that the previous owners did not pay their annual fees was irrelevant. The Board discussed that at length, with the feeling that since the new home would be substantially larger than the old, that the Sorenson's should be at least assessed as if the house was an add-on, but since the decision came from the County Attorney, we needed to abide by his legal counsel. The Soreneson's will be reimbursed their impact fee. This will set precedence for future situations that are similar in nature – if you build a new home where an existing home previously stood, an impact fee will not be charged.

e. Board Member Reports –
Bev: Brought up the conference in Midway, UT for board members of Special Service Districts. She asked if anyone was planning to attend, and reminded everyone that the Board by law is required to be trained each year. Beverly said that if no one else was able to attend, that she would. It was suggested that she speak with Mary Esther, who was currently out of town. Beverly will call her.
Dall: Fireman's Appreciation dinner will be held on October 11th at the Brandin' Iron. Beverly sent out the invitations, the 10-year awards (vests) have been purchased, new t-shirts and ball caps are also in – all is set. Just waiting on a few more RSVPs to come in.
Spence: Still waiting on the County to do their part in fixing the two cattle guards. Once that is completed, we will do our part
John: The County has re-stripped and performed other improvement to the main road coming up from Central to Pine Valley. They did a nice job. * John shared that he spoke to the Forestry Service about hunters who are hunting (and shooting) in Pine Valley. They said that hunters are not allowed to shoot in the campground, but can once they walk out of the campground. This was based on an experience he had with shooters just a couple hundred feet from where John was walking. What about the law about not shooting within 600 feet of a dwelling (which would constitute all of Pine Valley?) John then called Fish and Game and was told that there is a loophole to that law. It states only the hunter has to be 600 feet past a dwelling, but the animal he is shooting AT does not. In other words, if a deer is standing in someone's front yard close to their house, that deer can be shot at as long as the shooter himself is more than 600 ft away from the house. Members of the Board then spoke of other instances in the valley where hunters have come too close – a shot going through a cabin wall to hit a washing machine, the Udell ponies being shot at, etc. Spotlighting often occurs as soon as it gets dark, no matter what time of the year. The law states that someone can spotlight all they want as long as they do not have a weapon with them that is able to kill an animal. The Division of Wildlife is not going to close Pine Valley to hunting. The Pine Valley "unit" starts in St. George and they are NOT going to just cut off our area of the unit.

Dall had spoken to two wardens about this subject and was very frustrated. He called hotlines, no answer. He called the district office, no answer. It has been observed that the deer herds in Pine Valley have diminished drastically over the past ten years. Gerald has submitted two letters to Fish and Game, and he felt that he was dismissed as "crazy". George suggested someone from the Board should go to the meetings of the Fish and Game Department, or even State Legislature. Dall said he would be happy to follow through on that. Since Don Ipson (State Legislator) has property in Pine Valley, he might be a good person to approach and get on board with us. If we were Incorporated as a town, we would have more say in how this worked for our town. * The campground is in the process of being closed down for the season. Should be closed by the weekend. Fred was told that they would keep the Equestrian site and reservoir open a while longer.
Jeff: Kevin Keyes has asked to be placed on the agenda for next month to discuss the possible request for Pine Valley to be designated as a rural preservation area. * Jeff reminded the Board that our reserves can only be up to one years worth of income. We might want to address this at some point.

f. Fire Chief – Gerald (see report for September). Gerald and Laurett went and gave shots during the "Flu Shootout" in St. George. It was good experience for them. * 1978 LaFrance is showing major wear and tear on the pump.

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g. Treasurer Report – George (see report for September). Tentative 2013 PVSSD budget will need to be gone over during the November meeting.

2 - Public Comments: N/A

John moved to adjourn at 7:12 p.m. All were in favor. The next Board meeting will be held on Wednesday, November 7, 2012 at 6:00 P.M.